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SETTLEMENT AGREEMENT, RELEASE AND WAIVER

This Settlement Agreement, Release and Waiver (hereinafter "Agreement") is entered into between [REDACTED] and [REDACTED] ("Parents"), individually and on behalf of their son, [REDACTED] ("Student"), and the Brecksville-Broadview Heights School District Board of Education ("District" or "Board") (collectively, "Parties"). In consideration of and for the promises and mutual covenants set forth herein, the Parties agree as follows:

1. Student qualifies for special education and related services as a child with a disability pursuant to the Individuals with Disabilities Education Improvement Act ("IDEA") under the category of Autism. Parents and the Board disagree regarding the provision of a free appropriate education ("FAPE") to [REDACTED] for the 2019-2020 school year. The Parties reach this compromise agreement to avoid the expense, inconvenience, and potential acrimony of a due process hearing under the IDEA.
2.
 - a. The District will pay to and/or on behalf of Parents an amount not to exceed eighty-eight thousand, seven hundred and ten dollars and no cents (\$88,710.00) for costs associated with Student's tuition and educational expenses at or through Monarch School ("Monarch" or "Parentally Selected Placement") from August 19, 2019, through the conclusion of the summer of 2020 extended school year ("ESY") program, in full satisfaction of its obligation to provide FAPE to Student. The maximum District payment is based upon Monarch's regular school year tuition being \$81,885 and ESY services costing \$6,825. The District's payment(s) will be made directly to Monarch based upon receipt of invoices from Monarch being submitted to the Director of Pupil Services. The District will issue payment within thirty (30) days of receipt of proper invoices/documentation. The Parties agree to work cooperatively to facilitate payment arrangements. Parents agree that Student will remain enrolled in the District during the pendency of this Agreement. Parents further agree that for any school year in which Parents and/or Student accept payments set forth above, Parents and/or Student waive their right to apply for the Autism Scholarship Program or Jon Peterson Special Needs Scholarship. Parents further agree that for any period of time covered by this Agreement in which they seek contributions above and/or beyond that which is expressly set forth above, the District's payment obligations under this Agreement shall immediately terminate. Parents shall bear full responsibility for all other costs associated with Student's education from August 19, 2019, through the conclusion of the summer of 2020 ESY program, including but not limited to transportation from Student's father's house, therapies, and/or home-based services.
 - b. The District agrees to transport Student to and from Monarch and his mother's home from August 19, 2019, through the conclusion of the summer of 2020 ESY program. If, however, Student urinates, defecates and/or vomits on the vehicle and the District's contracted transportation provider charges the District a surcharge to clean-up the bodily fluids, Parents shall be responsible for paying the surcharge (i.e., \$15.00 per incident) upon receipt of proper invoicing as set forth below. The District will provide to Parents a copy of the incident reports generated as a result of

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any incident involving bodily fluids on the transportation vehicle. The District will submit a quarterly invoice (by November 15 (for August – October), February 15 (for November – January), May 15 (for February – April), and August 15 (for May – July)) to Parents that identifies the date of each incident and the total due, which shall be based upon the total number of incidents that occurred during the preceding three (3) months times \$15 per incident. The District will not bill Parents for an incident if the contracted transportation provider does not levy a surcharge against the District. Parents shall submit their full payment for the amount of the invoice by end of the month in which they receive the invoice (i.e., November 30, February 29, May 31, and August 31). Parents agree that they may not direct or control the District's choice of transportation provider as long as the District ensures that proper background checks as required by law are completed by said provider. If Parents request to view a video of footage of any incidents involving bodily fluids that resulted in the imposition of a surcharge from the contracted transportation provider, and such video exists, the District will, within reason, assist Parents in their efforts to view the video, including providing any necessary releases to allow Parents to view the video based upon the District's contract with the contracted transportation provider. The Parties expressly agree that if the District is closed due to inclement weather, and/or the transportation provider determines the roads to be unsafe for travel due to inclement weather, the District will not be obligated to transport Student to or from Monarch if Monarch remains open. In the event Parents choose to provide transportation on any day that the District is closed, or the provider is unable to transport due to inclement weather, the transporting Parent shall be reimbursed at the IRS-approved rate for mileage for transporting Student to and from Monarch and mother's home.

- c. Parents affirm that they selected Monarch and all other non-District providers, and they were not determined by the District to be Student's least restrictive environment. As such, Parents agree that the District shall not be responsible for the efficacy of the educational program provided to Student by Monarch and all other non-District providers, and that they shall have no right to seek compensatory education or other relief from the District as a result of any real or perceived failures by Monarch and all other non-District providers. See Paragraph 3 (Student may return to school in the District anytime and forego payment of any remaining funds otherwise authorized by this Agreement).
- d. The District's obligation to provide payment pursuant to this Agreement shall terminate on the date Student is no longer attending Monarch, or on the date Student's mother no longer resides in the District. If Student stops attending Monarch for any reason during the 2019-2020 school year, inclusive of the summer of 2020, Parents must notify the District immediately and the District will offer to implement the IEP developed on October 18, 2018, until such time as a new IEP can be developed. The new IEP shall be developed within ten (10) school days of Student returning to school in the District. Parents waive their right to challenge the appropriateness of the 10/18/2018 IEP, during the ten (10) school days while a new

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IEP is being developed. Parents retain the right to challenge the appropriateness of the new IEP, after it is developed and offered by the District.

- e. Parents affirm their intent to work cooperatively and in good faith with the District to develop Student's IEP for the 2020-2021 school year. Specifically, Parents agree to make Student available for all assessments and observations necessary for the District to develop an IEP for Student for the 2020-2021 school year. The Parties agree that a meeting to develop Student's 2020-2021 IEP will be held on or before May 1, 2020, but acknowledge that additional meetings beyond this date may be necessary. Parents shall bear responsibility for inviting Monarch personnel to the IEP team meeting(s) which will be convened at a mutually agreeable time for the District and Parents. The District agrees to allow an individual of Parents' choosing to observe any placement proposed by the IEP team designed to be in effect during the 2020-2021 school year, so long as said individual affirms their intent not to obtain, secure, retain, or redisclose information relating to other students.
- f. Parents agree to provide releases allowing the District to receive all education records (including, but not limited to, all programming data, assessments, consultant's reports, and/or evaluations) from Monarch and any other service provider(s) who have worked with and/or provided educational services to Student from August 19, 2019, through the conclusion of the summer of 2020 ESY program, and/or to provide such records directly if requested to do so by the District. Parents also consent to periodic observations of Student at Monarch by District employees or representatives. Such observations will not occur more frequently than quarterly, and will be conducted in accordance with Monarch's rules, regulations and guidelines. Parents shall receive a minimum of seventy-two (72) hours advanced notice of when such observations shall be occurring. If the District requires assistance from Parents to obtain needed educational information and/or observations about or of Student, the District will advise Parents of this need and provide Parents with specific guidance as to the nature of the assistance needed, and Parents will act in good faith to provide such assistance.
- g. Parents understand and agree that Student's placement at the parentally-selected placement is unilateral on their part and is not Student's "initial stay-put," "stay-put" or Student's "initial/pendency placement" should Parents disagree with the IEP or educational program proposed by the District for the 2020-2021 school year and challenge the IEP or file any administrative or judicial proceeding regarding such IEP. The Parties expressly agree that the placement identified in the IEP developed pursuant to Paragraph 2(e), above, shall be Student's "initial stay-put," "stay put" or Student's "initial/pendency placement" regardless of whether Parents agree with the IEP and/or consent to its implementation.
- h. Parents agree to assume full responsibility for federal, state and local taxes and other payments, if any, owed on the amounts paid by the District to the Parentally Selected Placement pursuant to this Agreement. The District will issue a Form 1099-MISC to the Parentally Selected Placement for the amounts paid to it pursuant

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to this Agreement. The District, however, will not issue to Parent a Form 1099-MISC and no withholdings will be made from the amounts paid by the District to the Parentally Selected Placement pursuant to this Agreement. If it is later determined by the IRS or another governmental authority that the District should have withheld taxes from the amounts paid by it to the Parentally Selected Placement pursuant to this Agreement, Parents agree to indemnify and hold the District harmless for the amount of such taxes, and to reimburse the District for any penalties and/or interest assessed against the District as a result of it failing to withhold the taxes on said payments.

3. The Parties agree that for any school year or time-period referenced in this Agreement, Parents and/or Student have the right to decline the settlement terms and amounts specified in the subsections of Paragraph 2, and to seek to have Student educated in the District and to be served under the IDEA. If Parents and/or Student accept payment for any year or time-period referenced in the subsections of Paragraph 2, claims for that specific year and/or time-period, including any right to access a FAPE from the District are waived for the period of the year covered by the payment in accordance with the terms of the Agreement.
4. The Parties expressly agree that this Agreement is not precedent setting and shall have no bearing on Student's current and future educational programming and educational placement (i.e., this Agreement shall have no impact on any prior, present or future stay-put orders, and shall not serve as an admission that [REDACTED] requires placement outside of the District). As such, Parents agree that they are prohibited from introducing this Agreement or the payments made by the District in accordance with this Agreement in any future due process proceeding for the purpose of establishing [REDACTED] need for placement outside of the District.
5. This Agreement and all payment obligations existing hereunder are contingent upon Student's mother and Student residing in the District, the District being provided records and access to Student in accordance with Paragraph 2(f) above, and Parents making, in a timely manner, the payments required pursuant to Paragraph 2(b). If Student's mother and/or Student no longer reside in the District, or if releases for education records and/or access to Student are not provided by Parents or Parents fail to make, in a timely manner, the payments required pursuant to Paragraph 2(b), the District's payment obligations shall terminate after a fourteen (14) day period in which Parents can cure failure. Nothing contained in this Agreement shall be construed to preclude Student and/or Parents from forfeiting payment(s) provided hereunder and returning to the District for an education.
6. If Student and/or his legal guardian or representative(s), as designated by a Court or Parents, ever initiate any legal proceedings seeking to invalidate or set aside all or any portion(s) of this Agreement, other than an action for breach of this Agreement, Parents shall hold the District harmless and indemnify the District for any liability, judgment, legal fees, or other costs and expenses arising from such legal proceedings. Any challenge to this Agreement must be brought in Federal District Court.

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7. Parents expressly acknowledge that this Agreement is effective through the 2019-2020 school year, inclusive of the summer of 2020, and that circumstances may change. Parents further acknowledge and agree that they assume the risk of any and all changes in circumstance and that this Agreement shall not be invalidated by any such change.
8. The payments identified in Paragraph 2 shall be made within thirty (30) business days of the District's Director of Pupil Services receiving the documentation set forth in the subsections to Paragraph 2. Parents specifically waive any right to interest or late fees on the amount of settlement for any delay in payment from the date of settlement until the date payment is due in accordance with the terms of this Agreement, and specifically releases and discharges the District and Peters Kalail & Markakis Co., L.P.A., including all of their predecessors, successors, assigns, officers, employees and agents, and each of them, in both their individual and official capacities, from any claim or demand for interest on the settlement amount to which the Parents may or may not otherwise be entitled in accordance with *Hartmann v. Duffey*, 95 Ohio St.3d 456 (2002).
9. For as long as Student attends Monarch pursuant to the terms of this Agreement, Parents (individually and on behalf of [REDACTED]) waive any other claims that have accrued or may accrue through the conclusion of the summer of 2020 ESY program, against the Board and all agents, officers, and employees of the Board, including claims relating to education, special education, related services, tuition, room and board, reimbursement, compensatory education, therapy, and independent evaluations. Notwithstanding the preceding, in the event of a breach of this Agreement, Parents retain all their rights under applicable laws and regulations to enforce this Agreement. Notwithstanding this Paragraph, Parents retain all rights for prospective claims against the Board if Student returns to the District pursuant to Paragraph 3.
10. In consideration of the promises and commitments of the Board, as set forth in this Agreement, Parents, on their own behalf and on behalf of Student, agree that all of the issues that could have been raised in a request for Due Process and/or an administrative or judicial proceeding are resolved by this Agreement. Parents, individually and on behalf of Student, forever release and discharge the Board, including individual Board members, employees, and agents in their official capacities, (collectively referred to as "The Board and its Agents"), from any and all claims, demands, actions, causes of actions or suits at law or in equity of whatsoever kind and nature (including administrative complaints with the Ohio Department of Education and the United States Department of Education Office for Civil Rights, including claims of discrimination or retaliation pursuant to Section 504), which Parents and/or Student may have had, now have, or may now or hereafter assert against the Board and its Agents for the entire period prior to and up to the date of this Agreement, and through the conclusion of the summer of 2020 ESY program, with respect to Student's education in the District (i.e., the District's provision of a free appropriate public education to Student) through the end of the 2019-2020 school year, inclusive of the summer of 2020. If Student returns to the District prior to the conclusion of the summer of 2020 ESY program, this section of the Agreement will apply through the date Student returns to school in the District. This discharge of any liability includes, but is not limited to, a release of all claims arising under Section 1983 of the Civil Rights Act (42

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U.S.C. § 1983), 20 U.S.C. §§ 1400 et seq. (i.e., the Individuals with Disabilities Education Improvement Act), Section 504 of the Rehabilitation Act (29 U.S.C. § 794), the Americans with Disabilities Act (42 U.S.C. § 12101), Ohio Revised Code Chapter 3323, other civil rights laws, regulations that implement the above-referenced statutes, and the U.S. Constitution and Ohio Constitution. Notwithstanding the preceding, Parents retain all their rights under applicable laws and regulations to enforce this Agreement.

11. The Parties agree to keep this Agreement and the terms of this Agreement confidential. Parents further agree not to share this Agreement or the terms of this Agreement with anyone other than the following: (a) Monarch personnel necessary to facilitate implementation of this Agreement; (b) Parents' attorneys, accountants, financial advisors, and tax advisors; and (c) courts, impartial hearing officers, and mediators as necessary. If asked about their dispute with the Brecksville-Broadview Heights City School District, Parents shall respond only that it has been satisfactorily resolved. If Parents violate this Paragraph, a court of competent jurisdiction shall have authority to award appropriate relief, including that Parents shall refund all monies paid pursuant to this Agreement. The District acknowledges its responsibility to keep this agreement confidential pursuant to federal and state law as an educational record.
12. District and Parents agree that the provisions of this Agreement can only be modified in writing.
13. The Parties acknowledge that they have read this Settlement Agreement, Release and Waiver, and fully understand its provisions. The Parties further acknowledge that they have had an opportunity to consult with an attorney representing them to consider its terms before signing this Agreement. The Parties further declare and acknowledge that no promises or agreements not expressly included in this Agreement have been made and that this Settlement Agreement, Release and Waiver contains the entire agreement between the Parties. The Parties affirm they are signing this Agreement of their own free and voluntary will.
14. This Agreement does not constitute nor shall it be construed as an admission of liability or wrong doing by the Board, its agents, employees or successors, with respect to any claims that may have been asserted against the Board, and the Board expressly denies that it has done anything wrong or unlawful.
15. This Agreement is comprehensive with respect to the sums to be paid to and/or on behalf of Parents, and Parents agree that they shall make no application to the Court for, or in any other manner seek, fees and/or costs in connection with development and/or review of this Agreement. The Parties shall bear their own costs in connection with this matter.
16. This Agreement is subject to approval by the Board of Education, which will act on it no later than December 18, 2019.

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Date: _____

12/04/19

B

For herself and on behalf of _____

Date: _____

12-4-19

For himself and on behalf of _____

Date: _____

By: _____

Joelle Magyar, Superintendent
On behalf of Brecksville-Broadview Heights
City School District Board of Education

Date: _____

By: _____

Gina Symsek, Director of Pupil Services
On behalf of Brecksville-Broadview Heights
City School District Board of Education